

26CV00402 Jason Jeremy Carter v Santiago Charco et al

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-07-15

Motion: Motion re Consolidation

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Tentative Ruling: Jason Jeremy Carter v Santiago Charco et al

Case Number

26CV00402

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 07/15/2026 - 10:00

Nature of Proceedings

Motion re Consolidation

Tentative Ruling

Plaintiffs: David Yeremian

Defendant Santiago Charco: Robert Phillips

Defendant LYF: Aaron Reisner

RULING

DENIED.

Analysis

On September 10, 2024, Plaintiff Graciela Cisneros de Porras filed the complaint in case No. 24CV04992 against Defendants Santiago Charco Sanchez and Lyft, Inc. On October 3, 2025, the Court entered its order on the parties' stipulation to arbitrate the claim between Plaintiff and Defendant Sanchez, and to dismiss Defendant Lyft, Inc.

On January 20, 2026, Plaintiff Jason Jeremy Carter filed the complaint in case No. 26CV00402 against Defendants Santiago Charco and Lyft, Inc. (Note: Defendant Santiago Charco is the same person as Defendant Santiago Charco Sanchez in case No. 24CV04992.) Answers were filed in case No. 26CV00402 by Defendant Charco Sanchez on April 8, 2026, and by Defendant Lyft, Inc., on April 28, 2026.

On April 24, 2026, Defendant Charco Sanchez filed this motion in both case No. 24CV04992 and case No. 26CV00402 to consolidate both cases for all purposes. No opposition or other response has been filed by any party.

"When actions involving a common question of law or fact are pending before the Court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc., § 1048, subd. (a).)

Both cases arise out of the same automobile accident. (Mendez decl., ¶¶ 2, 7, 8.) Consequently, there is overlap in questions of fact with respect to the accident. However, in presenting this motion, Defendant Charco Sanchez does not explain how the different procedural postures of the cases would be affected by consolidation. In particular, the remaining parties in case No. 24CV04992 were ordered to arbitration in 2025. In case No. 26CV00402, Lyft remains a party to the action but has indicated an intent to move to compel arbitration. Additionally, this motion is not presented as a motion to consolidate arbitrations under Code of Civil Procedure section 1281.3, but as a motion to consolidate the Court actions under section 1048.

There is no showing that there would be judicial efficiency in consolidating a case that is pending in arbitration with a case that may be tried, partially or fully, in Court. The motion to consolidate will be denied without prejudice.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

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